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File No.: EXP202307554

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On November 2, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against GESTIÓ INSCRIPCIONS I CONTROL CURSES, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202307554

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On April 21, 2023, a complaint was registered with this authority filed by A.A.A. with NIF ***NIF.1 (hereinafter, the complainant) and directed to the Catalan Authority for Data Protection against GESTIÓ INSCRIPCIONS I CONTROL CURSES, S.L. with NIF B25708629 (hereinafter, the respondent).

This autonomous body forwarded the aforementioned complaint to the General Subdirectorate of Data Inspection of this authority, given that the facts referred to in said complaint are not within the competencies of the aforementioned body, in accordance with current regulations.

Through her writing, the complainant states that within the internet portal ***URL.1, belonging to the respondent, when entering the ID number of a person who has previously participated in a course, the rest of the personal data is displayed without restriction, such as name and surname, postal and email address, phone number, year of birth, and educational institution.

For evidentiary purposes, the complainant provides her daughter's NIF and the address of the portal, stating that when entering this number in the registration for any other course, the system displays the rest of the personal data that had been previously entered to register her for previous school courses. This authority has verified that, indeed, when entering the daughter's NIF in the new registration for any available course, the system automatically displays the following personal data associated with the mentioned identification number: name, first surname, second surname, locality, mobile phone, email address, year of birth, sex, and club or entity.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency, within one month, of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out electronically in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified on 05/06/2023 as evidenced by the acknowledgment of receipt in the file.

On 06/06/2023, this authority received a written response from the respondent regarding the forwarding, from which the following statements are highlighted.

The respondent indicates that when a user wishes to register for an event for the first time, they must fill out the corresponding registration form for each event. Once the mandatory data required by the organizer is filled in, the user must accept the legal terms, the conditions of use, and the privacy policy, as well as the regulations of the race or event.

Furthermore, it states that the responsible party offers the interested person the possibility of retaining their personal data for future registrations and thus being able to recover said data by entering the user's identification document number. In this regard, it points out that the responsible party informs the interested party in the registration form of an explicit and unequivocal authorization regarding said processing. For evidentiary purposes, it provides an image showing the user's consent for this

purpose. In this image, in addition to the box confirming that the user has read and accepted the legal terms, conditions of use, and privacy policy, there is another box that expressly states the text "I want to be able to recover my personal data in future forms," followed by a link that states "(according to these conditions)."

After accessing the mentioned conditions through the indicated link, this authority has verified that the following paragraph appears:

"I authorize Gestió Inscripciones i Control Curses, S.L. to facilitate the completion of future forms by displaying my personal data provided."

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In this form, starting from the entry of my ID number in the new forms, so that I do not have to fill in all my data each time. If at any time you wish to revoke this authorization, you can request it at ***EMAIL.1.

On the other hand, the entity being claimed states that the user is offered the possibility to exercise any right of complaint, which can be made through the email address provided both in the identification of the data controller in the privacy policies and in the explicit and differentiated consent for the retention of data for future forms.

Finally, the entity being claimed requests the present authority to file the complaint submitted, given that it has the consent of the claimed party in order to retain the data for future registrations.

Regarding the duration of the retention of personal data, no statement is made by the entity being claimed. This authority has verified that in the privacy policy displayed in the registration form, in the section related to the retention of personal data, the following is indicated:

"We will retain your personal data from the time you give us your consent until you revoke it or request the limitation of processing. In these cases, we will keep your data in a blocked state for the legally required periods."

THIRD: On July 21, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

FOURTH: According to the report collected from the AXESOR tool, the entity GESTIÓ INSCRIPCIONS I CONTROL CURSES, S.L. is a microenterprise with a turnover of XXX.XXX euros in the year 2023.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation breached under Article 5.1 e) of the GDPR

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Article 5.1 of the GDPR, concerning the general principles of processing, establishes that personal

data shall be:

[...]

e) maintained in a manner that allows for the identification of data subjects for no longer than is necessary for the purposes of processing the personal data; personal data may be retained for longer periods provided that they are processed solely for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, without prejudice to the application of appropriate technical and organizational measures imposed by this Regulation to protect the rights and freedoms of the data subject ("data retention limitation"); In the case at hand, as shown in the background of this agreement, the privacy information on the website of the respondent party contains a provision regarding the retention of personal data stating: "We will retain your personal data from the time you give us your consent until you revoke it or request the limitation of processing. In these cases, we will keep your data in a blocked manner for the legally required periods."

From this statement, it can be inferred that the retention of personal data obtained by the respondent party is maintained indefinitely from the consent of the data subject, unless that person requests its revocation or the limitation of processing. This provision, in the opinion of the present authority, violates the principle of data retention limitation, as such retention is not linked to the purposes of processing the obtained data, but is retained by default, unless there is an express manifestation from the data subject.

It is important to note that the principle of limitation of retention of personal data implies that they can only be retained for the time necessary to achieve the purposes for which they were collected or subsequently processed.

In this regard, the recent judgment of October 20, 2022, from the First Chamber of the Court of Justice of the European Union (Case Digi Távközlési és Szolgáltató Kft. v. Nemzeti Adatvédelmi és Információszabadság Hatóság) has clarified the scope of this principle:

"Thus, as is unambiguously evident from the terms in which this provision is drafted, the principle of 'data retention limitation' requires that the data controller be able to demonstrate, in accordance with the principle of proactive responsibility recalled in paragraph 24 of this judgment, that personal data is retained only for the time necessary to achieve the purposes for which it was collected or for which it has been subsequently processed."

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It follows that even data processing that is initially lawful may, over time, become incompatible with Regulation 2016/679 (LCEur 2016, 605) when the data is no longer necessary for the achievement of such purposes [Judgment of September 24, 2019 (CJEU 2019, 201), GC and others (Removal of links to sensitive data), C-136/17, EU:C:2019:773, paragraph 74] and that the data must be deleted when those purposes have been fulfilled (see, in this regard, the judgment of May 7, 2009, Rijkeboer, C-553/07 (CJEU 2009, 119), EU:C:2009:293, paragraph 33).

As indicated by the aforementioned judgment, it is the responsibility of the data controller, under the principle of proactive responsibility, to demonstrate compliance with the aforementioned principle of data retention limitation. Therefore, it is the data controller who must demonstrate that the aforementioned data is retained only for the time necessary to achieve the purposes for which it was collected.

In the present case, and without prejudice to what may result during the instruction of the present procedure, taking into account the information displayed on the website regarding the retention of personal data, there appears to be a presumed violation of the aforementioned principle of data retention limitation by establishing, by default, an unlimited retention period for the same, not being linked to the purposes for which they were collected or subsequently processed.

IV

Classification and qualification of the alleged infringement of Article 5.1 e) of the GDPR

According to the indications available at this stage of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the complained party may have violated the principle of data retention limitation, as established by Article 5.1 e) of the GDPR.

If the violation of this article is confirmed, it could constitute an infringement classified under Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:
a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For its part, for the purposes of the limitation period, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:
a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Sanction for violation of Article 5.1 e) of the GDPR

The indicated infringement provided for in Article 5.1 e) may be sanctioned with a fine of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.5 of the GDPR.

According to Article 83.2 of the GDPR, "when deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

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k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.

Taking into account the general conditions for the imposition of administrative fines established by the aforementioned Article 83.2 of the GDPR, and considering the circumstances of the present case,

without prejudice to the outcome of the instruction of this procedure, a possible sanction proposed is a fine of €2,000 (TWO THOUSAND EUROS).

VI

Breach of Article 32 of the GDPR

Article 32 "Security of processing" of the GDPR establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law."

It is necessary to point out that the aforementioned provision does not establish a list of specific security measures according to the data being processed, but rather establishes the obligation for the controller and the processor to apply...

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technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, as well as the risks of likelihood and severity for the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, determining those technical and organizational measures that are appropriate, considering pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification process (which is not an audit), evaluation, and assessment of the effectiveness of the measures.

In any case, when assessing the adequacy of the level of security, particular attention must be paid to the risks presented by the processing of data, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

In this regard, Recital 83 of the GDPR states that "(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or processor must assess the inherent risks of the processing and implement measures to mitigate them, such as encryption.

These measures must ensure an adequate level of security, including confidentiality, taking into

account the state of the art and the cost of their implementation in relation to the risks and the nature of the personal data that needs to be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data, particularly those that could cause physical, material, or immaterial harm.”

In the case at hand, from the facts described in the complaint, the response of the entity being complained against to the transfer, as well as the verifications carried out by this authority, there appears to be a presumed absence of the adoption of security measures appropriate to the risk by the complained party. This absence is manifested in the fact that any person who knows the ID number of another registered in any previous event, through a form on the website of the complained party and without prior identification, can access several personal data of that person, such as their name, surname, locality, date of birth, or email address, among others.

Such a possibility demonstrates a lack of adequate security measures relative to the risk, which should have been implemented prior to the deployment of the registration forms on the website of the complained party. It is worth recalling that among the purposes of such security measures is precisely the ability to ensure the confidentiality of personal data.

It is not possible to justify such circumstances by the fact that the data subjects have expressly consented to the retrieval of their data.

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personal data for future registration forms. Indeed, the interested party has the option to expressly consent to this choice in order to make subsequent forms easier to fill out, which seems to be the purpose of its implementation, as indicated by the conditions outlined in the annex. However, such consent does not imply that this possibility extends to third parties, allowing anyone, whether or not they are a subscriber to the courses, to access such personal data under the same terms as its owner. It is also not possible to hide behind the fact that the user can revoke this consent at any time, as the acceptance of such a possibility, even for a brief period, could have jeopardized the confidentiality of their personal data.

To prevent such occurrences, various measures could have been adopted that would have prevented any possible processing of personal data by individuals other than its owner. One of these could have involved the implementation of a verification system for the interested party through prior registration via username and password, allowing the option to save and retrieve their data in subsequent forms while simultaneously ensuring the confidentiality of the same. Furthermore, consideration should have been given to the possibility that any user has to recover and reuse the information included in a previous form, through the configuration of the browser they use on their device, which typically allows the option to save and autocomplete addresses, as is the case, for example, with the Google browser. The aforementioned assessments or possibilities would have been taken into account by the respondent if they had implemented the appropriate security measures concerning the risks referred to in Article 32, which, as can be deduced, do not appear to have been adopted in the present case, implying a presumed violation of this obligation by the respondent.

VII

Classification and qualification of the infringement for violation of Article 32

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the respondent may have violated the provisions of Article 32, which imposes the obligation to apply appropriate technical and organizational measures to ensure a level of security appropriate to the risk.

The known facts could constitute the commission of the infringement classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states: "Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with

administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 2% of the total global annual turnover of the previous financial year, opting for the higher amount:

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a) the obligations of the controller and the processor pursuant to Articles 8, 11, 25 to 39, 42, and 43; (...)"

For the purposes of the limitation period, Article 73 "Serious infringements" of the LOPDGDD states:

"In accordance with what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and shall be subject to a limitation period of two years: those that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...) f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.

VIII

Sanction for the alleged infringement of Article 32 of the GDPR

The indicated infringement may be sanctioned with an administrative fine of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.4 of the GDPR.

Taking into account these premises, as well as the general conditions for the imposition of administrative fines established by the aforementioned Article 83.2 of the GDPR, and considering the circumstances of the present case, without prejudice to what results from the instruction of this procedure, a possible sanction of a fine in the amount of 1,500 € (ONE THOUSAND FIVE HUNDRED EUROS) is proposed.

IX

Adoption of measures

If the infringement is confirmed, it may be agreed to impose on the controller the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

In this case, in the resolution that is adopted regarding the alleged violation of Article 5.1 e), the controller may be required to notify this Agency within three months of the adoption of the following measure:

- The specific determination of the retention periods of personal data in relation to the purposes of processing, duly recorded in the activity register and informing the data subjects specifically in the privacy policy.

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Likewise, regarding the violation of Article 32 of the GDPR, in the resolution that is adopted, the controller may be required to notify this Agency within three months of the adoption of the following measure:

- The implementation of technical and organizational security measures that prevent third parties from

viewing personal data corresponding to individuals who had previously registered for any course or event, regardless of whether they consented to the retrieval to complete the form data.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against GESTIÓ INSCRIPCIONS I CONTROL CURSES, S.L., with NIF B25708629, for the alleged infringement of Article 5.1 e) of the GDPR and Article 32 of the GDPR, classified in Articles 83.5 and 83.4 of the GDPR respectively.

SECOND: TO APPOINT B.B.B. as instructor and C.C.C. as secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what results from the instruction:

- For the alleged infringement of Article 5.1.e) of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of 2,000.00 € (TWO THOUSAND EUROS).

- For the alleged infringement of Article 32 of the GDPR, classified in Article 83.4 of that regulation, an administrative fine of 1,500.00 € (ONE THOUSAND FIVE HUNDRED EUROS).

FIFTH: TO NOTIFY this agreement to GESTIÓ INSCRIPCIONS I CONTROL CURSES, S.L., with NIF B25708629, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate.

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convenient. In your written allegations, you must provide your NIF and the file number that appears in the heading of this document.

If you do not submit allegations to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 2,800.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at 2,800.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 2,100.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

Furthermore, in order to prevent further infringements of the same nature, the acknowledgment of responsibility and the consequent application of the mentioned reduction will imply the acceptance, where appropriate, of the measures to be adopted proposed and indicated by this entity in the present agreement.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (2,800.00 euros or 2,100.00 euros), you must make it effective by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

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The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file of actions will occur; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

935-290523

Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On November 16, 2023, the respondent has proceeded to pay the sanction in the amount of 2,100 euros, making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”.

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is warranted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the imposition of the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202307554, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER GESTIÓ INSCRIPCIONS I CONTROL CURSES, S.L. to notify the Agency within three months of the adoption of the measures described in the legal grounds of the Agreement to initiate transcribed in this resolution.

THIRD: TO NOTIFY this resolution to GESTIÓ INSCRIPCIONS I CONTROL CURSES, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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